

25SMCV06165 25SMCV06165

County: los-angeles

Division: Civil Law and Motion

Department: P

Hearing date: 2026-08-07

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SM%20%2CP%2C08%2F07%2F2026

Source SHA-256: a32adaca8105c3e67c18cedf844e4ad0cd77d50a8c1434b2e6b01ea150453cba

Case Number: 25SMCV06165 Hearing Date: August 7, 2026 Dept: P

Tentative Ruling

Taylor Megdal v. Doe

1, et al., Case No. 25SMCV06165

Geneva Maschler's

Motion to Set Aside Default Judgment

Hearing Date: August

7, 2026

Background

Plaintiff Taylor Megdal ("Megdal"), an attorney appearing in pro per, sues Defendant Geneva Maschler ("Maschler") for fraud, breach of contract, violation of the UCL, and negligence, claiming that Maschler fraudulently failed to disclose a tenant when she sold Plaintiff a six-unit, tenant-occupied property located at 1241 21st Street, Santa Monica, CA.

On November 25, 2025, Megdal filed the complaint.

On January 21, 2026, Megdal filed proof of service by substituted service attesting that Plaintiff was served on December 21, 2025.

On February 9, 2026, Megdal entered default against Maschler.

On April 6, 2026, the Court granted default judgment against Maschler for \$886,925.28.

On May 14, 2026, Maschler filed this motion to set aside default and a demurrer. On June 24, 2026, Megdal filed opposition. On July 1, 2026, Maschler replied.

On July 8, 2026, the Court held hearing on this motion and continued the hearing to August 7, 2026 to allow Defendant to file a supplemental declaration and Plaintiff to respond.

On July 20, 2026, Defendant filed a supplemental brief. On July 28, 2026, Plaintiff filed opposition. On July 30, 2026, Defendant replied.

Arguments

Maschler brings this motion to set aside default on the grounds that Megdal improperly served her. Maschler argues that despite the fact that Maschler's sub-tenant received service and texted Maschler images of the complaint in December 2025. (Motion to Set Aside, p. 3.) Maschler contends that service was improper because Maschler was not permanently residing at the Santa Barbara address where she was served. (Ibid.) Maschler also argues that default should be set aside due to excusable neglect because Megdal's service was improper and because Maschler received notice of the complaint during the height of Mammoth Lakes ski season, while she was preparing for a three-month trip to Japan from which she only recently returned. (Id. at pp. 6-7.) Maschler argues that despite her vacation, she was able to retain counsel in mid-March, 2026. (Ibid.) Maschler argues that the court lacks jurisdiction under Code Civ. Proc. § 473(d) because of Megdal's improper service. (Id. at p. 9.)

In opposition, Megdal argues that Maschler's motion should be denied because she had actual notice of the complaint, he properly served her by substituted service, and because Maschler does not identify any mistake or neglect that would justify setting aside default. (Opposition, pp. 3-5). Megdal also argues that the record is not clear that service was improper, so such a finding would be inappropriate without an evidentiary hearing. (Id. at pp. 6-7.)

In reply, Maschler contends that Megdal does not prove that Maschler was properly served because he does not submit evidence that the summons and complaint were mailed following substitute service. (Reply, p. 4.) Next, Maschler argued that Megdal failed to serve Maschler at her “usual mailing address,” because he served her at her old Santa Barbara address and not at her current Mammoth Lakes address. (Id. at p. 5.) Then, Maschler argues that service on her sub-tenant was improper because the sub-tenant was not a member of Maschler’s household. (Id. at pp. 6-7.)

In her supplemental brief, Maschler argues that attorney mistake prevented her from responding timely to the complaint. Maschler argues that her attorney advised her that she need not appear at the April 6, 2026, Case Management Conference and that he would appear for her. He then did not appear at the hearing because he believed that Maschler was improperly served. (Alberts Decl., ¶ 6.)

In opposition, Megdal argues that Maschler’s supplemental brief does not show that Maschler’s attorney made a mistake while representing her and therefore does not trigger the mandatory relief provision. (Opposition, p. 3.) Megdal argues that Maschler’s counsel is trying to take the blame for the adverse ruling after the fact. (Id. at p. 4.) Megdal cites *Todd v. Thrifty Corp.* (1995) 34 Cal.App.4th 986 and *Cisneros v. Vueve* (1995) 37 Cal.App.4th 906. (Id. at pp. 7-8, 10.)

In reply, Maschler argues that the fiduciary relationship between a client and an attorney extends to pre-retention communications, and that her relationship with her attorney began when she sought out his legal advice. (Reply, p. 3.) Maschler argues that *Cisneros* is distinguishable because Maschler was in contact with her attorney, and that neglectful attorney advice was a “cause in fact” of the default. (Id. at p. 4.) Maschler argues that *Todd* does not apply to this case because Maschler’s attorney did not disclaim blame for Maschler’s failure to timely respond to the moving papers. (Id. at p. 6.) In the alternative, Maschler requests discretionary relief. (Ibid.)

Motion to Set
Aside Default

CCP section 473(b) provides, in relevant part, that
“the court shall, whenever an application for relief is made no more than six

months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against his or her client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against his or her client, unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect." (Id.)

Code of

Civ. Proc. § 473.5(a) also provides a mechanism for the court to set aside default judgment if service did not result in actual notice. "The notice of motion shall be served and filed within a reasonable time, but in no event exceeding the earlier of: (i) two years after entry of a default judgment against him or her; or (ii) 180 days after service on him or her of a written notice that the default or default judgment has been entered." (Code Civ. Proc. § 473.5(a).)

Default

judgment may be set aside under Code Civ. Proc. § 473(d) if the judgment is void on its face. (Code Civ. Proc., § 473, subd. (d); *Kremerman v.*

White (2021) 71 Cal.App.5th 358, 360-70.) " "A judgment or order is said to be void on its face when the invalidity is apparent upon an inspection of the judgment-roll."

' [Citation.] This inquiry, however, 'does not hinge on evidence: A void judgment's invalidity appears on the face of the record.'

[Citation.]" (*Kremerman v. White*, supra, 71 Cal.App.5th at p.

370.) "[C]ompliance with the statutory procedures for service of process is essential to establish personal jurisdiction.

[Citation.] Thus, a default judgment entered against a defendant who was not served with a summons in the manner prescribed by statute is void.

[Citation.]" (*Ellard v. Conway* (2001) 94 Cal.App.4th 540, 544.)

"The

policy of the law favors a hearing on the merits." (*Purdum v. Holmes* (2010) 187 Cal.App.4th 916, 922.) Therefore, when a party in default moves promptly to request relief, very slight evidence is required to justify a trial court's order setting aside a default. (Id.)

Analysis

a.

Code

Civ. Proc. § 473(b)

Maschler

submits the Alberts declaration showing that her attorney mistakenly told her she did not need to worry about appearing at the April case management conference, which led to the default judgment. (Alberts Supplemental Decl., ¶ 6.)

In *Cisneros v. Vuevo* (1995) 37 Cal.App.4th 906, the Court of Appeal affirmed a trial court's finding that an attorney who was not retained until a month after plaintiff entered default judgment could not have made a mistake that caused default. (*Cisneros v. Vuevo*, supra, 37 Cal.App.4th at 912.)

In Todd

v. Thrifty Corp. (1995) 34 Cal.App.4th 986 ("Todd"), the trial Court dismissed Todd's personal injury case after Todd failed to comply with the Court's order compelling her to respond to Thrifty's discovery requests. (*Todd v. Thrifty Corp.*, supra, 34 Cal.App.4th at 988.) When Todd moved to vacate the dismissal, arguing that his client's illness prevented her from responding to discovery. (*Id.* at 989.) The Court suggested that Todd's counsel file an "attorney declaration of fault" claiming that his own mistaken failure to appear at the dismissal hearing caused the dismissal. (*Id.* at p. 990.) Thrifty appealed the Court's order denying the motion. (*Ibid.*) The Court of Appeal found that Todd's attorney's failure to appear at the hearing on the motion to dismiss did not cause the dismissal, so relief from default was inappropriate. (*Id.* at 991.) The Court of Appeal also found that Todd's attorney's supplemental declaration was covering up for his client because it conflicted with prior statements. (*Id.* at 992.)

This case

is distinct. First, had Maschler or her counsel made a general or special appearance at the April hearing, the Court would not and could not have entered default judgment against her. Second, Maschler's supplemental declaration is not inconsistent with her prior testimony. Maschler and her attorney consistently took the position that Megdal's service was improper and that they

did not participate in this case sooner because they believed they were not properly served. Maschler's supplemental declaration adds additional facts—that Maschler's attorney improperly advised her that she did not need to appear at the April hearing—but does not contradict the original position. Even if Maschler had not yet officially retained Mr. Alberts as her attorney when he told her she need not appear at the April hearing, Mr. Alberts provided her with legal advice and was communicating with her about this case. Since Mr. Alberts' advice caused the error, the fact that Maschler did not sign the official paperwork until later does not bar relief from default judgment under Cisneros or Todd.

Maschler
has met her burden of showing that default judgment was granted due to attorney mistake.

Conclusion

Maschler's
Motion to Set Aside Default is GRANTED.